

26PSCV01402 26PSCV01402

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-08-10

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Case Number: 26PSCV01402 Hearing Date: August 10, 2026 Dept: G

Defendant Turbo Wholesale Tires Inc.'s Demurrer
to Plaintiff Anatoly Pogorelov's Complaint

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Defendant

Turbo Wholesale Tires Inc.'s Demurrer to Plaintiff Anatoly Pogorelov's
Complaint is CONTINUED.

BACKGROUND

This

is an intentional tort action. On

September 2, 2025, defendant Phillip Matthew Kane (Kane), an employee of
defendants Turbo Wholesale Tires Inc. (Turbo) and I&R Co. (I&R),
allegedly attacked plaintiff Anatoly Pogorelov (Pogorelov) after Pogorelov
asked Kane to move his car out of Pogorelov's assigned parking space.

On

April 17, 2026, Pogorelov filed the Complaint, alleging causes of action for
(1) assault, (2) battery, (3) intentional infliction of emotional distress, (4)
negligence, and (5) negligent hiring, supervision, and retention.

On

July 8, 2026, Turbo filed this demurrer, which is unopposed.

The

demurrer is set for hearing on August 10, 2026.

ANALYSIS

Turbo

specifically demurs to the fourth and fifth causes of action of the Complaint. For the following reasons, the demurrer is CONTINUED.

Legal

Standard

Pursuant

to Code of Civil Procedure section 430.41, prior to filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.”

(Code Civ. Proc., §430.41, subd. (a).)

It further provides that “the demurring party shall identify all of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies.” (Code Civ. Proc., § 430.41, subd. (a)(1).)

While

Code of Civil Procedure section 430.41, subdivision (a)(4) makes clear failing to meet and confer is not grounds to overrule a demurrer, courts “are not required to ignore defects in the meet and confer process” and if the court determines “no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.” (Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal.App.5th 348, 355 & fn. 3.)

Discussion

Turbo’s

counsel provides a declaration indicating that they met and conferred by video

conference with Pogorelov's previous counsel before they withdrew. (See Krumm Decl., ¶¶ 3–5, 7.) Turbo's counsel then contacted Pogorelov

directly, but Pogorelov only agreed to meet and confer by email. (See Krumm Decl., ¶ 8.) Thus, Turbo's counsel did not meet and

confer in person, by video conference, or by telephone as required by Code of Civil Procedure sections 430.41, subdivision (a).

Therefore,

the demurrer is CONTINUED Turbo's counsel is ORDERED to MEET AND CONFER with Pogorelov by telephone, video conference, or in person and FILE a SUPPLEMENTAL DECLARATION describing such meet and confer efforts, including whether the attempts were made by telephone, video conference, or in person, at least nine (9) court days before the next scheduled hearing on the demurrer.

If

Pogorelov refuses to meet and confer as ordered by the court and as prescribed by Code, Turbo's counsel may simply present a supplemental declaration that advises of Pogorelov's refusal.

CONCLUSION

For

these reasons, the demurrer is CONTINUED to a date to be determined at the hearing in Department G (Pomona).

Defendant

Turbo Wholesale Tires Inc.'s counsel is ORDERED to MEET AND CONFER with plaintiff Anatoly Pogorelov regarding the present demurrer and to FILE a SUPPLEMENTAL DECLARATION describing such meet and confer efforts, including whether the attempts were made by telephone, video conference, or in person, at least nine (9) court days before the next scheduled hearing on the demurrer.